EXHIBIT C

DECLARATION OF

CHERRY HILL COURT CONDOMINIUM

DECLARATION
OF
CHERRY HILL COURT CONDOMINIUM

NUTMEG HOUSING DEVELOPMENT CORPORATION, a corporation organized and existing under the laws of the State of Connecticut, with an office at 1209A Chapel Street, in the Town of New Haven, County of New Haven and State of Connecticut, (hereinafter referred to as the "Declarant"), on behalf of itself, its successors and assigns, does hereby declare:

ARTICLE I
Submission of Property

The purpose of this Declaration is to make, declare and publish the intention and desire of the Declarant to, and the Declarant hereby does, submit the property, including the improvements thereon or to be constructed thereon, hereinafter more particularly described in Article III herein (hereinafter referred to as the "Property"), to the provisions of the Common Interest Ownership Act, (Public Act 83-474), of the Connecticut General Statutes, as amended, for the specific purpose of creating and establishing Cherry Hill Court Condominium.

ARTICLE II
Definitions

Section 1. definitions. The following words when used in this Declaration shall have the following meanings:

(a) **"Act"** means the Common Interest Ownership Act (Public Act 83-474) of the Connecticut General Statutes, as amended.

(b) **"Allocated Interests"** means the undivided interest in the Common Elements, the Common Expense Liability, and votes in the Association allocated to the Units in the Common Interest Community. The Allocated Interests are described in Article VIII of this Declaration and shown as Exhibit E-B.

(c) **"Appurtenant Interest"** means the appurtenant interest included in the title to each Unit, and consists of the following:

(1) A Unit Owners Allocated Interests;

(2) The beneficial interest of a Unit Owner in any Unit previously acquired by the Association or its designee on behalf of Unit Owners, or the proceeds of the sale or lease thereof, if any;

(3) The beneficial interest of a Unit Owner in the Association; and

(4) Easements for limited purposes appurtenant to certain Units as shown on a subdivision map or described in a deed to a Unit Owner.

(d) "**Assessments**" means the charges assessed against each Unit pursuant to this Declaration and the Bylaws.

(e) "**Association**" means the Association of Unit Owners of a Common Interest Community organized under Section 44 of the Act. The name of the Association is Cherry Hill Court Condominium Association, Inc.

(f) "**Board of Directors**" means the Executive Board, or the body, regardless of name designated in this Declaration to act on behalf of the Association.

(g) "**Board of Governors**" means the Board of Directors of the Association, as it may be from time to time constituted pursuant to the Bylaws or law. Unless otherwise designated by law in the Bylaws or hereunder, the Board of Governors may take any and all actions reserved to the Association under this Declaration or Bylaws.

(h) "**Bylaws**" means the Bylaws of the Association, as they may be amended from time to time.

(i) "**Cherry Hill Court Condominium**" means the properties, any addition to the properties, the amenities, streets, roadways and maintenance areas presently owned by this Declaration including specifically the condominiums as described in Exhibit D-C and Exhibit D-D-1 through D-D-5.

(j) "**Common Expense**" means expenditures made by, or liabilities of the Association, together with allocations to reserves. This term includes:

(1) Expenses of administration, maintenances, repair or replacement of the Common Elements and Units maintained by the Association pursuant to the Bylaws;

(2) Expenses delcared Common Expenses by provisions of this Declaration or the Bylaws;

(3) Expenses agreed upon as Common Expenses by the Association and lawfully assessed against the Unit Owners in accordance with the Bylaws;

(4) Any valid charge against the Association, the Common

Elements, or against the Common Interest Community as a whole; and

(5) Deposits into reasonable reserves established for the repair, replacement or addition to, of depreciated or deteriorrated capital improvements. If, for U.S. Internal Revenue purposes, accumulations of such reserves may be deemed taxable income, the Association may establish Trusts, or other instrumentalities to segregate such income from that of the Association, or establish collections therefor as capital contributions.

(l) **"Common Expense Liability"** means the liability for Common Expenses allocated to each Unit pursuant to this Declaration and Section 27 of the Act. The charge assessed against each Unit for its periodic share of the Common Expense shall be an equal amount for all Units.

(m) **"Common Interest Community"** means the real property described in Exhibit D-A to this Declaration, which real property and the improvements thereon are subject to the Declaration of Cherry Hill Court Condominium, and any amendment thereto.

(n) **"Common Profit"** means the balance of all income, rent, profits and revenues from Common Expense Assessments and other income of the Association remaining after deducting Common Expenses.

(o) **"Condominium"** means a Common Interest Community in which portions of the real property are designated for separate ownership and the remainder of the real property is designated for common ownership solely by the owners of those portions.

(p) **"Declarant"** means any person or group of persons acting in concert who (a) as part of a common promotional plan, offers to dispose of his interest in a unit not previously disposed of or (b) reserves or succeeds to any Special Declarant Right. As of the date of this Declaration, Nutmeg Housing Development Corporation, is the Declarant of this Common Interest Community.

(q) **"Declaration"** means this document as it may be amended from time to time.

(r) **"Developer"** means Nutmeg Housing Development Corporation, its successors and assigns.

(s) **"Developer's Reservations and Obligations"** means those rights, reservations and obligations included in Article VII herein.

(t) **"Development Rights"** means any right or combination of rights reserved by a Declarant in Article VI of this Declaration to (a) add real property to a Common Interest Community; (b) create Units, Common Elements, or Limited Common Elements within a Common Interest Community; (c) subdivide Units or convert Units into Common Elements; or (d) withdraw real property from a Common Interest Community.

(u) **"Eligible Mortgagee"** means a mortgagee given certain rights to receive notice, approve amendments and take the actions provided in Article XVIII of this Declaration.

(v) **"Executive Board"** means the Board of Directors or Board of Governors of the Association.

(w) **"Family"** means any number of individuals living together as a single housekeeping unit and doing their cooking on the premises, as distinguished from a group occupying a boarding or rooming house or hotel.

(x) **"Governor"** means a member of the Board of Governors of the Association.

(y) **"Indentifying Number"** means a symbol or address that indentifies only one Unit in a Common Interest Community.

(z) **"Instruments"** means this Declaration and any amendments thereto, the Survey and Plans recorded and filed pursuant to the provision of the Act and the Bylaws and Regulations of the Association. Any Exhibit, schedule or certification accompanying an instrument is a part of that Instrument.

(aa) **"Limited Common Elements"** means a portion of the Common Elements allocated by this Declaration or by operation of subsection (2) or (4) of Section 22 of the Act for the exclusive use of one or more but fewer than all of the Units.

(bb) **"Manager"** means a person, firm or corporation employed or engaged as an independent contractor to perform management services for the Properties. The term includes Management Agent. The Declarant or its affiliate may be the Manager under a separate contract.

(cc) **"Majority"** means the owners of more than fifty (50%) percent of the votes in the Association. Any specified percentage portio or fraction of Unit Owners, unless otherwise stated in the Instruments, means such percentage, portion or fraction in the aggregate of such portion of votes.

(dd) **"Member"** means a member of Cherry Hill Court Condominium Association, Inc. A member may be a Condominium Association, or the Declarant pursuant to ARticle XXIV of this Declaration.

(ee) **"Notice and Comment"** means the right of a unit owner or unit owners to receive notice of certain actions proposed to be taken by or on behalf of the Association, and the right to comment orally or in writing on the proposed action. The right to Notice and Comement does not entitle a unit owner to be heard at a formally constituted meeting. Notice shall be given to the Unit Owner or Unit Owners having rights hereunder in writing and shall be delivered personally or by mail to such Unit Owner or Unit Owners or to their residences, or published in a newsletter or similar publication which is routinely circulated throughtout the Common Interest Community.

(ff) **"Notice and Comment"** means the right of a Unit Owner or Unit Owners to receive notice of certain actions proposed to be taken by or on behalf of the Association, and the right to be heard at a formally constituted meeting. The notice of the meeting shall describe the proposed action and shall be given in the same manner as provided for notice in Subsection (ee) hereof. Unless Notice and Hearing is required for a certain action, no Notice and Hearing is necessary.

(gg) **"Person"** means any entity legally capable of holding an interest in land under the laws of the State of Connecticut.

(hh) **"Plans"** means the plans filed with this Declaration as Exhibit D-D-1 through D-D- and any amendments thereto.

(ii) **"Properties"** means the real property descrigbed in Exhibit D-A.

(jj) **"Purchaser"** means a Person, other than a Declarant or a dealer, who by means of a voluntary transfer acquires a legal or equitable interest in a Unit other than (a) a leasehold interest, including renewal options, of less than twenty (20) years, or (b) as security for an obligation.

(kk) **"Regulations"** means the rules and/or regulations of the Association for the use of the Common Elements and Units of the Common Interest Community, made and promulgated by the Board of Directors, as they may be amended from time to time.

(ll) **"Residence"** means any buidlings or portion of a building

situated or to be situated on the Properties designed and intended for use and occupancy for residential purposes by a single family.

(mm) "**Residential Unit**" means a condominium unit occupied as a Residence.

(nn) "**Security Interest**" means an interest in real property or personal property, created by contract or conveyance, which secures payment or performance or an obligation. The term includes a lien created by a mortage, deed of trust, trust deed, security deed, contract for deed, land sales contract, lease intended as security, assignment of lease or rents intended as security, pledge of an ownership interest in an Association, and any other consensual lien or title retention contract intended as security for an obligation.

(oo) "**Special Declarant Rights**" means rights reserved for the benefit of a Declarant to (a) complete improvements indicated on Surveys and Plans filed with this Declaration; (b) exercise any Development Right; (c) maintain sales offices, management offices, signs advertising the Common Interest Community and models; (d) use easements through the Common Elements for the purpose of making improvements within the Common Interest Community or within real property which may be added to the Common Interest Community; or (e) appoint or remove any officer of the Association or any member of the Board of Directors during any period of Declarant control.

(pp) "**Survey**" means the Surveys filed with this Declaration as Exhibits and any amendments thereto.

(qq) "**Trustee**" means the party designated pursuant to Article XX of this Declaration as the Trustee for the receipt, administration and disbursement of funds for insurance, casualty loss, condemnation or similar funds.

(rr) "**Unit**" means a physical portion of the Common Interest Community designated for separate ownership or occupancy, the boundaries of which are described pursuant to Article IV of this Declaration, and the plans annexed to this Declaration as Exhibit D-D-1 through D-D-5.

(ss) "**Unit Owner**" means a Declarant or other Person who owns a unit but does not include a Person having an interest in a Unit solely as security for an obligation. The Declarant is the owner of any Unit created by this Declaration.

(tt) "**Vote**" means the votes allocated to each Unit as set forth in this Declaration.

ARTICLE III
Description of Land

The buildings and other improvements contained within the Common Interest Community are located on a certain piece or parcel of land situated on Quinnipiac Avenue in the Town of New Haven , County of New Haven and State of Connecticut, as shown on a certain survey entitled " ". A copy of said survey is annexed hereto and made a part hereof as Exhibit D-C.

Said premises are further bounded and described on Exhibit D-A annexed hereto and made a part hereof.

The buildings and improvements constructed or to be constructed on the declared property are shown on a set of Plans attached hereto and made a part hereof as Exhibit D-D-1 through D-D-5 .

ARTICLE IV
Maximum Number of Units; Boundaries

Section 1. Number of Units: The Common Interest Community presently contains eight (8)) Units. The Declarant reserves the right to create up to ten (10) additional Units, for a total of eighteen (18) Units.

Section 2. Boundaries: Boundaries of each unit created by this Declaration are shown on the Survey and Plans as numbered units their indentifying number and are described as follows:

(a) **Upper Boundary**

(1) **Units:**

The horizontal or sloping plane or planes of the unfinished lower surfaces of the roof bearing structure surfaces, beams, and rafters entended to an interesection with the vertical perimeter boundaries.

(b) **Lower Boundary:**

(1) **Units:**

The horizontal plane or planes of the undecorated or unfinished upper surfaces of the floors, including poured concrete floors, extended to an interesection with their vertical perimeter boundaries.

(c) **Vertical Perimeter Boundaries:** The planes defined by the inner surfaces of the studs framing of the perimeter walls; the unfinished inner surfaces of poured concrete walls and thresholds along perimeter walls and floors; the unfinished inner surfaces of closed windows and closed perimeter doors; and the innermost unfinished survey of all interior bearing

studs and framing of bearing walls, columns, bearing partitions, and partition walls between separate Units.

(d) **Inclusions**: Each Unit shall include the spaces and improvements lying within the boundaries described in Section 2(a) and 2(b) of this Article IV, and shall also include the spaces and the improvements containing any electrical heating and water heating apparatus and all electrical switches, wiring, pipes, ducts, conduits, and television, telephone and electrical receptacles and light fixtures and boxes serving that Unit exclusively, the surface of the foregoing being the boundaries of such Unit, whether or not such spaces are contiguous.

(e) **Exclusions**: Except when specifically included by the provisions of Section 2 of this Article IV, the following are exluded from each Unit: the spaces and improvements lying outside of the boundaries described Section 2(a) and 2(b) of this ARticle IV; and all chutes, pipes, flues, ducts, wires, conduits, and other facilities running through any interior wall or partition for the purpose of furnishing utility and similar services to other Units and Common Elements.

(f) **Inconsistency with Plans**: If this definition is inconsistent with the Plans, then this definition shall control.

ARTICLE V
Limited Common Elements

Section 1. Limited Common Elements: The following portions of the Common Elements are Limited Common Elements assigned to the Units as stated:

(a) If any chute, duct, wire, conduit, bearing wall, bearing column or any other fixture lies partially within and partially outside the designated boundaries of a Unit, any portion thereof serving only that Unit is a Limited Common Element allocated solely to that Unit, and any portion thereof serving more than one Unit or any portion of the Common Elements is a part of the Common Elements.

(b) Any shutters, awnings, window boxes, doorsteps, stoops, porches, balconies, patios and all exterior doors and windows or other fixtures designed to serve a single Unit, but located outside the Unit's boundaries, are Limited Common Elements allocated exclusively to that Unit.

(c) Stoops and steps at the entrances to each building, which provides access to less than all Units, the use of which is limited to the Units to which they provide access.

ARTICLE VI
Development Rights and Special Declarant Rights

Section 1. Reservation of Development Rights: The Declarant reserves the following Development Rights:

(a) The right to add real property to the Common Interest Community;

(b) The right to create Units, Common Elements and Limited Common Elements in the location shown as "Development Rights Reserved in this Area" on the Survey and Plans;

(c) The right to subdivide units or convert units into common elements; and

(d) The right to withdraw real property from the Common Interest Community, as shown on the Survey.

Section 2. Limitations on Development Rights: The Development Rights reserved in Section 1 of this Article VI are limited as follows:

(a) The Development Rights may be exercised at any time, but not after January 1, 2001 ;

(b) Not more than ten (10) additional units may be created under the Development Rights;

(c) Subject to the Special Declarant Rights set forth in Section 5 of this Article V, all Units and Common Elements created pursuant to the Development Rights will be restricted to residential use in the same manner and to the same extent as the Units created under this initial Declaration; and

Section 3. Phasing of Development Rights: No assurances are made by the Declarant regarding the portions of the areas shown on the survey attached to this Declaration as "Development Rights Reserved in this Area" as to the portions where the Declarant will exercise its Development Rights or the order in which such portions, or all of the areas will be developed. The exercise of Development Rights as to some portions will not obligate the Declarant to exercise them as to other portions.

Section 4. Architectural Consistency: The exteriors of the buildings and improvements constructed under the Development Rights will be reasonably compatible with the exteriors of the buidlings previously constructed at Cherry Hill Court Condominium.

Section 5. Special Declarant Rights: The Declarant reserves the following Special Declarant Rights, to the maximum extent permitted by law, which may be exercised, where applicable, anywhere within the Common Interest Community:

(a) To complete improvements indicated on Surveys and Plans filed with this Declaration and any Amendments thereto;

(b) To exercise any Development Right reserved in this Declaration;

(c) To maintain sales offices, management offices, signs advertising the Common Interest Community models;

(d) To use easements through the Common Elements for the purpose of making improvements within the Common Interest Community; and

(e) To appoint or remove any officer of the Association or any Board of Directors member during any period of Declarant control.

Section 6. Models: As long as the Declarant is a Unit Owner or lessor, the Declarant and its duly authorized agents, representatives and employees may maintain any Unit owned or lease by the Declarant or any portion of the Common Elements as a model Unit, sale office, or management office.

Section 7. Construction; Declarant's Easement: The Declarant reserves the right to perform warranty work, repairs and construction work, and to store materials in secure areas, in Units and Common Elements, and the further right to control all such work and repairs, and the right to access thereto, until completion of said work. All work may be performed by the Declarant without the consent or approval of the Board of Directors. The Declarant has such an easement through the Common Elements as may be reasonably necessary for the purpose of discharging the Declarant's obligations or exercising Special Declarant Rights, whether arising under the Act or reserved in this Declaration.

Section 8. Signs and Marketing: The Declarant reserves the right to post signs and displays in the Common Elements and in any Units to which it retains a title or possessory interest, to promote sales of Units, and to conduct general sales activities in a manner as will not unreasonably disturb the rights of all Unit Owners at Cherry Hill Court Condominium .

Section 9. Association or Board of Directors Actions Subject to Declarant's Approval: Declarant may voluntarily surrender the right to appoint and remove officers and members of the Board of Directors before termination of the period of Declarant control, but in that event the Declarant may require, for the duration of

the period of Declarant control, that specified actions of the Association or Board of Directors as described in a recorded instrument executed by the Declarant, be approved by the Declarant before they become effective.

Section 10. Declarant's Personal Property: The Declarant reserves the right to retain all personal property and equipment used in sales, management, repairs, construction and maintenance of the premises that has not been represented as property of the Association. The Declarant reserves the right to remove, (promptly after the sale of the last Unit) from the Property any and all goods and improvements used in development, marketing, repair and construction, whether or not they have become fixtures.

Section 11. Declarant Control of the Association:

(a) **Subject to Subsection (b):** There shall be a period of Declarant Control of the Association, during which the Declarant, or persons designated by it, may appoint and remove the officers and members of the Board of Directors. The period of Declarant control terminates no later tha the earlier of: (1) sixty (60) days after conveyance of sixty (60) percent of the Units that may be created to Unit Owners other than a Declarant; (2) two (2) years after all Declarants have ceased to offer Units for sale in the ordinary course of business; (3) two (2) years after any right to add new Units was last exercised; or (4) five (5) years after the first Unit has been conveyed to a Person other than the Declarant. A Declarant may voluntarily surrender the right to appint and remove officers and members of the Board of Directors before termination of that period, but in that event the Declarant may require, for the duration of the period of Declarant control, that specified actions of the Association or Board of Directors as described in a recorded instrument executed by the Declarant, be approved by the Declarant before they become effective.

(b) Not later than sixty (60) days after conveyance of one-third (1/3rd) of the units that may be created to Unit Owners other than a Declarant, at least one (1) member and not less than one-third (1/3rd) of the members of the Board of Directors shall be elected by Unit Owners other than the Declarant.

(c) Except as otherwise provided in Section 11(b) of this Article VI, not later than the termination of any period of Declarant control the Unit Owners shall elect a Board of Directors of at least three members, at least a majority of whom shall be Unit Owners. The Board of Directors shall elect the officers. The Board of directors members and officers take office upon election.

(d) Notwithstanding any provision of this Declaration or Bylaws to the contrary, the Unit Owners, by a two-thirds 2/3rds votes of all Persons present and entitled to vote at any meeting of the Unit Owners at which a quorum is present, may remove any member of the Board of Directors with or without cause, other than a member appointed by the Declarant.

Section 12. Limitations on Special Declarant Rights: Unless sooner terminated by a recorded instrument executed by the Declarant, any Special Declarant Right may be exercised by the Declarant so long as the Declarant is obligated under any warranty or obligation, owns any Units or any Security Interest on any Units within the Common Interest Community, or unitl January 1, 2001 , whichever is sooner. Earlier termination of certain rights may occur by statute.

ARTICLE VII
Developer's Reservations and Obligations

Section 1. Developer's Reservations and Rights: In addition to any other rights reserved to the Developer under this Declaration and notwithstanding any other provisions of this Declaration, the Developer reserves unto itself and its successors and assigns the following rights and privileges until January 1,2001 or such earlier time as declared by the Developer:

(a) The right to excavate, clear and construct structures and improvements on any portion of the Developable Land and to complete the construction and development of Cherry Hill Court Condominium as approved by the appropriate municipal agencies of the Town of New Haven and to do all things necessary or appropriate to accomplish said construction and development, provided that all construction on the Developable Land shall be reasonably compatible with the characteristics of Cherry Hill Court Condominium . To the extent existing conditions are distrubed, such conditions shall be restored as nearly as feasible to their prior condition.

(b) The right, from time to time, to lay out, mark, and improve the Developable Land pursuant to the above plan.

(c) The right, from time to time, to lay out, mark, and construct roads which shall be located, on and shall be designed to, provide safe and efficient means of vehicular ingress, egress, and circulation throughout the Properties for private automobiles, fire fighting apparatus, security, police and emergency vehicles, moving vans, trucks, and other vehicles serving Cherry Hill Court Condominium.

(d) The right and power, at any time and from time to time, to lay out, mark and maintain utility easements for the construction, connection, operation, maintenance, relocation, repair and inspection of pipes, sewers, mains, collectors, trunk lines, pumping stations, drainage swales, conduits, lines, poles, and appurtenant access ways and facilities for any and all utility systems at such locations upon, under, and across the Developable Land as shall be consistent with the intended use of Cherry Hill Court Condominium with minimum interference with the use and enjoyment of the Property, and to convey in the name of the Association and as attorney and agent for the Unit Owners, such easements and title to required pipes and utility structures to any public or municipal utility empowered to operate and maintain the same; provided, however, that all such utilities shall be located underground to the maximum extent feasible, otherwise appropriately screeded if possible, and that any ground distrubed by construction or excavation within such easements shall be restored as nearly as feasible to its prior condition.

(e) The right at any time and from time to time to lay out, mark and construct walks, which may be located anywhere on the Developable Land and shall be open for reasonable access and general use and enjoyment by the Unit Owners. The walks shall not exceed ten (10) feet in width and shall be designed and located to conform to the natural features of the land.

(f) The right to display such signs; maintain such offices, storage and construction facilities, models, hospitality rooms for transient occpancy; and carry out such businesses as the Developer deems appropriate to the construction, development, management and maintenance of Cherry Hill Court Condominium and the construction and sale of Units on the Developable Land.

(g) Rights of the Developer as provided under the Certificate of Incorporation of Cherry Hill Court Condominium Association, Inc.

ARTICLE VIII
Allocated Interest

Section 1. Allocation of Interests: The table showing Unit Identifying Numbers and their Allocated Interest is attached hereto and made a part hereof as Exhibit D-B. These interest have been allocated in accordance with the formulas set forth in this Article VIII. These formulas are to be used in reallocating interests if additional Units are created within the Common Interest Community.

Section 2. Formulas for the Allocation of Interests: The interest allocated to each Unit have been calculated on the following formulas:

(a) **Undivided Interest in the Common Elements.** The percentage of the undivided interest in the Common Elements is equal for all Units. The formulas for deriving the percentage interests is as follows:

$$\frac{1}{\text{Number of Units within the Common Interest Community}} \times 100 = \text{Percentage Undivided Interest for each Unit}$$

$$\frac{1}{\text{Number of Units within the Common Interest Community}} \times 100 = \text{Percentage Common Expense Liability for each Unit}$$

(c) **Votes.** Each Unit in the Common Interest Community shall have one equal vote in the affairs of the Association.

ARTICLE IX
Encroachments

Section 1. Physical Boundaries: The existing physical boundaries of a Unit or the physical boundaries of a Unit

reconstructed in substantial accordance with the description contained in this Declaration are its legal boundaries, rather than the boundaries derived from the description contained in this Declaration, regardless of vertical or lateral movement of the building or minor variance between those boundaries and the boundaries derived from the description contained in this original Declaration. This section does not relieve a Unit Owner of liability in case of his willful misconduct or relieve a Declarant or any other person of liability for failure to adhere to any surveys and plans.

Section 2. Common Elements: If any portion of any Common Element encroaches on any Unit, or if any portion of a Unit encroaches on any Common Element, as a result of the duly authorized construction, reconstruction or repair of a building, or the shifting, settlement, or other movement of any portion of the improvements, a valid easement for the encroachment and for the

maintenance of the same shall exist so long as the building stands. The purpose of this section is to protect the Unit Owners, except in cases of willful and intentional misconduct by them or their agents or employees, and not to relieve the Declarant or any contractor, subcontractor or materialman of any liability which any of them may have by reason of any failure to adhere substantially to the survey maps and plans.

Section 3. Destruction: If any part of this Common Interest Community is destroyed partially or totally as a result of fire or other casualty or as a result of condemnation or eminent domain proceedings, and then is reconstructed as authorized in the Act and this Declaration as amended, encroachment on any Unit or any Common Element due to such reconstruction shall be permitted, and valid easements for such encroachments and the maintenance of them shall exist so long as any building stands.

ARTICLE X
Pipes, Ducts, Cables, Wires, Conduits Public Utility Lines and Other Common Elements

Each Unit Owner shall have an easement in common with the owners of all other Units to use all pipes, wires, ducts, cables, conduits, public utility lines and other Common Elements located in any of the other Units and serving his Unit. Each Unit shall be subject to an easement in favor of the owners of all other Units to use the pipes, ducts, cables, wirers, conduits, public utility lines and other Common Elements serving such other Unit and located in such Unit. In addition, each Unit shall be subject to, and each Unit Owner shall have in common with the owners of all other Units, such easements of support, shelter, ingress and egress from and over such other Units and the Common Elements as may be necessary for the quiet enjoyment of each such Unit. The Declarant and Association shall have the right to be execerised by their duly authorized agents, to have access to each Unit from time to time during reasonable hours as may be necessary for the maintenance, repair or replacement of any of the Common Elements therein or accessible therefrom, or for making emergency repairs therein necessary to prevent damage to the Common Elements or to a Unit or Units, subject to such reasonable rules and regulations for the administration of this provision as the privacy and protection of such Units and their contents from burglary or larceny and from fire or other casaulty may require. If the Declarant, the Association or their duly authorized agents, as the case may be, are denied entry for such purposes, the Unit Owner shall be soley responsible for the expenses of restoring the Unit should forceful entry be necessary.

ARTICLE XI
Easement, Licenses

All easements, liens, defects, recorded covenants, conditions,

restrictions, reservations, licenses and encumbrances to which the Common Interest Community is subject except for those contained in Articles IX and X hereof, are listed in Exhibit D-E to this Declaration.

ARTICLE XII
Reallocation of Limited Common Elements

Section 1. Reallocation of Depicted Limited Common Elements: No Limited Common Element described in this Declaration or depicted on the Survey or Plans shall be reallocated.

ARTICLE XIII
Addition, Alterations and Improvements

Section 1. Additions, Alterations and Improvements by Unit Owners:

(a) No Unit Owner shall make any structureal addition, structural alteration, or structural improvement in or to the Common Interest Community without the prior written consent of the Board of Directors. The Board of Directors shall answer any written request by a Unit Owner for approval of a structural addition, alteration or improvement within sixty (60) days after such request. The Board of Directors shall review requests in accordance with the provisions of its Regulations.

(b) Subject to the provisions of Section 1(a) of this Article XIII a Unit Owner:

(i) May make any improvements or alterations to the interior of his Unit that do not impair the structural integrity or mechanical systems or lessen the support of any portion of the Common Interest Community.

(ii) May not change the appearance of the Common Elements, or the exterior appearance of a Unit or any other portion of the Common Interest Community, without permission of the Association.

(iii) After acquiring an adjoining Unit or an adjoining part of an adjoining Unit, may remove or alter any intervening partition or create apertures therein, even if the partition in whole or in part is a Common Element, if those acts do not impair the structural integrity or mechanical systems or lessent the support of any portion of the Common Interest Community. Removal of partitions or creation of apertures under this subsection is not an alteration of boundaries.

ARTICLE XIV
Relocation of Boundaries between adjoining Units

Section 1. Application and Amendment: Subject to approval of any structural changes pursuant to Article XIII hereof, the boundaries between adjoining Units may be relocated by an amendment to this Declaration on application to the Association by the Unit Owners of those Units. If the Unit Owners of the adjoining Units have specified a reallocation between their Units or their Allocated Interests, the application shall state the proposed reallocations. Unless the Board of Directors determines, within sixty (60) days after receipt of the application, that the reallocations are reasonable, the Association shall consent to the reallocation and prepare an amendment that indentifies the Units involved, states the reallocations and indicates the Association's consent.

Section 2. Recording Amendments: The Association shall prepare and record Surveys or Plans necessary to show the altered boundaries between adjoining Units, and their dimensions and Indentifying Numbers.The applicants shall pay for the costs of preparation of the amendment and its recording.

ARTICLE XV
Amendments to Declaration

Section 1. General: Except as provided in Section 37 of the Act, this Declaration including the Surveys and Plans may be amended only by vote or agreement of Unit Owners of Units to which at least sixty-seven (67%) percent of the Vites in the Association are allocated.

Section 2. Limitation of Challenges: No action to challenge the validity of an amendment adopted by the Association pursuant to this Section may be broung more than one (1) year after the amendment is recorded.

Section 3. Recordation of Amendments: Every amendment to this Declaration shall be recorded in every town in which any porition of the Common Interest Community is located and is effective only on recordation. An amendment except an amendment pursuant to Article XIV of this Declaration shall be indexed in the grantee's index in the name of the Common Interest Community and the Association and in the grantor's index in the name of the parties executing the amendment.

Section 4. When Unanimous consent Required: Except to the extent expressly permitted or required by other provisions of the Act and this Declaration, no amendment may create or increase Special Declarant Rights increase the number of Units, change the boundaries of any Unit, the Allocated Interest of an Unit, or the uses to which any Unit is restricted, in the absence of unanimous consent of the Unit Owners.

Section 5. Execution of Amendments: Amendments to this Declaration required by the Act to be recorded by the Association shall be prepared, executed, recorded and certified on behalf of the Association by any officer of the Association designated for that purpose or, in the absence of designation, by the president of the Association.

Section 6. Special Declarant Rights: Provisions in this Declaration creating Special Declarant rights may not be amended without the consent of the Declarant.

Section 7. Consent of Holders of Security Rights: Amendments to the instruments are subject to the consent requirements of Article XVIII.

ARTICLE XVI
Amendments to Bylaws

The Bulaws may be amended only by vote of a majority of Unit Owners, following Notice to all Unit Owners, at any meeting duly called for such purposes.

ARTICLE XVII
Termination

Termination of the Common Interest Community may be accomplished only in accordance with Section 38 of the Act.

ARTICLE XVIII
Mortgagee Protection

Section 1. Introduction: This Article establishes certain standards and covenants which are for the benefit of the holders of certain Security Interests and others, as indentified in Section 2 of this Article XVIII. This Article is supplemental to, and not in substitution form, any other provisions of the Instruments, but in the case of conflict, this Article shall control.

Section 2. Definitions: As used in this Article, the following terms are defined:

(a) **Eligible Mortgagee:** The holder of a first Security Interest on a Unit who has notified the Association, in writing, of

its name and address, and that it holds a mortgage on a Unit. Such Notice shall be deemed to include a request that the Eligible Mortgagee be given notices and other rights described in this Article XVIII.

(b) **Eligible Insurer:** An insurer or guarantor of a first mortgage who has notified the Association in writing of its name and address and that it has insured or guaranteed a first mortgage on a Unit. Such notice shall be deemed to inlcude a request that the Eligible Insurer be given the notices and other rights described in this Article XVIII

(c) **Construction Lender:** The holder of a first Security Interest on Units and/or real property within the Common Interest Community, which Security Interest secures one or more construction loans to the Declarant.

(d) **Percentage of Eligible Mortgagees:** Wherever in this Article the approval or consent of a specified percentage of Eligible Mortgagees is required, it shall mean the approval or consent by Eligible Mortgagees holding mortgages on Units which in the aggregate have allocated to them such specified percentage when compared to the total allocated to all Units then subject to mortgages held by Eligible Mortgagees.

Section 3. Notice of Actions: The Association shall give prompt written notice to each Eligible Mortgagee, Eligible Insurer and Construction Lender of:

(a) Any condemnation loss or any casualty loss which affects a material portion of the Common Interest Community or any Unit on which tere is a first mortgage hold, insured, or guaranteed by such Eligible Mortgagee or Eligible Insurer, or Construction Lender as applicable.

(b) Any delinquency in the payment of Common Expenses assessments owned by a Unit Owner whose Unit is subject to a first mortgage held, insured, or guaranteed, by such Eligible Mortgagee or Eligible Insurer or Construction Lender which remains uncured for a period of sixty (60) days.

(c) Any lapse, cancellation, or material modification of any insurance policy or fidelity bond maintained by the Association.

(d) Any proposed actin which would require the consent of a specified percentage of Eligible Mortgagees and Construction Lenders as specified in Section 4 of this Article XVIII.

(e) Any judgment rendered against the Association.

Section 4. Prior Consent Required:

(a) **Document Change:** Notwithstanding any lower requirement permitted by this Declaration or the Act, no amendment of any material provision of the Instruments by the Association or Unit Owners except the Declarant as reserved under the Declarant's Development Rights and Special Declarant Rights described in this Section 4(a) may be adopted without the vote of at least sixty-seven (67/5) percent of the Unit Owners (or any greater Unit Owner vote required in this

Declaration or the Act) and until approved in writing by at least fifty-one (51%) percent of the Eligible Mortgagees (or any greater Eligible Mortgagee approval required by this Declaration), and all of the Construction Lenders. Material provision includes, but is not limited to, any provision affecting:

(i) Assessment, assessment liens or subordination of assessment liens;

(ii) Voting rights;

(iii) Reserves for maintenance, repairs and replacement of Common Elements;

(iv) Responsibility for maintenance and repairs;

(v) Reallocation of interest in the Common Elements;

(vi) Rights to use Common Elements and Limited Common Elements;

(vii) Boundaries of Units (except that when boundaries of only adjoining units are involved, or a Unit is being subdivided, then only those Unit Owners and the Eligible Mortgagees with Security Interests on such Unit or Units must approve such action);

(ix) Expansion or constructio of the Common Interest Community, or the addition, annexation or withdrawal of property to or from the Common Interest Community;

(x) Insurance or fidelity bonds;

(xi) Lease of Units;

(xii) Imposition of restrictions on a Unit Owner's right to sell or transfer his or her Unit;

(xiii) Establishment of self-management when professional

management had been required previously by an Eligible Mortgagee of a Unit;

(xiv) Restoration or repair of the project (after a hazard damage or partial condemnation) in a manner other than that specified in the Instruments;

(xv) Termination of the Common Interest Community after occurrence of substantial destruction or condemnation; and

(xvi) Any provisions that expressly benefit mortgage holders, insurers or guarantors.

(b) **Actions**. Notwithstanding any lower requirement otherwise permitted by this Declaration or the Act, the Association may not take any of the following actions without the approval of at least fifty-one (51%) percent of the Eligible Mortgagees, and all the Construction Lenders.

(i) Convey or encumber the Common Elements or any portion thereof (as to which an eighty (80%) percent Eligible Mortgagee approval is required). The granting of easements for public utilities or for other public purposes consistent with the intended use of the Common Elements by the Common Interest Community shall not be deemed a transfer within the meaning of this clause;

(ii) The establishment of self-management when professional management has been required previously by any Eligible Mortgagee;

(iii) The restoration or repair of the Property (after hazard damage or partial condemnation) in a manner other than that specified in the Instruments;

(iv) Termination of the Common Interest Community (as to which a sixty-seven (67%) percent Eligible Mortgagee approval is required);

(v) The alteration of any partition or creation of any aperture between adjoining Units (when Unit boundaries are not otherwise being affected), in which case only the owners of Units affected and Eligible Mortgagees of those Units need approve the action;

(vi) The merger or consolidation of this Common Interest Community with any other common interest community;

(vii) The creation of any additional improvements on any portion of the Common Elements which is subject to any Development Rights.;

(viii) The granting of any easements, (excluding any easements granted by Article VI and VII hereof), leases, licenses and concessions through or over the Common Elements (excluding, however, any utility easements serving or to serve the Common Interest Community and excluding any any leases, licenses or concessions for no more than one (1) year);

(c) The Association may not change the period for collection of regularly budgeted Common Expense Assessments to other than monthly without the consent of all Eligible Mortgagees and all Construction Lenders.

Section 5. Development Rights and Special Declarant Rights: No Development Rights may be exercised unless all persons holding Security Interests in the Property which are senior to this Declaration or Security Interest in the Development Rights consent to the amendment.

Section 6. Inspection of Books: The Association shall permit any Eligible Mortgagee, Eligible Insurer and Construction Lender to inspect the books and records of the Association during normal business hours.

Section 7. Financial Statements: The Association shall, upon request provide each Eligible Mortgagee, Eligible Insurer, and Construction Lender with a copy of an annual financial stastement within ninety (90) days following the end of each fiscal year of the Association. Such financial statement shall be audited by an independent certified public accountant when any Eligible Mortgagee or Construction Lender requests it, in which case the Eligible Mortgagee or Construction Lender shall bear the cost of the audit.

Section 8. Enforcement: The provisions of this Article are for the benefit of Eligible Mortggees, Eligible Insurers, Construction lenders and their successors and assigns, and may be enforced by any of them by any available means, in law, or in equity.

Section 9. Attendance at Meeting: Any representative of an Eligible Insurer, Eligible Mortgagee or Construction Lender may attend any meeting which a Unit Owner may attend.

ARTICLE XIX
Insurance

The Association in accordance with Public Act 83-474 (the Common Interest Ownership Act), as amended, will obtain a master insurance policy. The following is a statement of insurance coverage provided for the benefit of Unit Owners.

The Association has obtained a master insurance policy from Travellers Insurance Company. The effective date of coverage shall be the date of the conveyance of the first Unit to a purchaser other than the Declarant and shall expire one (1) year thereafter. The policy is written on a blanket basis (total coverage for all buildings is $915,000) with agreed amount, and replacement cost coverages. The following is an explanation of these items:

(a) Blanket - The total amount of insurance could apply to your building or all buildings the Association is responsible to insure.

(b) Agreed Amount - There is no co-insurance in the event of loss. Just a ($1,000) deductible per occurrence.

(c) Replacement Cost - Losses are adjusted without depreceiation if the building is replaced.

Under the building coverage which is "All Risk", the master policy is covering the buildings that includes the party walls, fixtures, and installations initially installed by the developer and their replacements thereof. Even though it is "All Risk" coverage, some common exclusions * are listed blow. In short, the property coverages on the master policy covers the property that was originally purchased from the developer. (i.e. exterior walls, roofs, interior walls, partitions, ceilings, floors, rugs, etc.)

Common Exclusions:

(a) Household and personal property of an individual Unit Owner.

(b) Damage caused by earthquake and flood.

(c) Water which backs up through sewers.

NOTE: *A complete list of the exclusions can be found in the policies which are on file with the Board of Directors, or their designee.

In addition to the coverage listed above, the master policy provides the following coverages for the Association as required by the Bylaws.

COMPREHENSIVE GENERAL LIABILITY.

Bodily Injury and Property Damage Liability ($1,000,000) combined single limit per occurrence.

Personal Injury Liability and Advertising.

Medical Payments ($5,000) per person, ($25,000) each accident.

Non-Owned Auto - ($1,000,000) single limit.

Other coverages include - $25,000 single limit.

Premises/operations liability
Host Liquor Law
Incidental Medical Malpratice
Worldwide Products Liability
Broad Form Property Damage
Blanket Contractual
Employee as additional named insureds

FIDELITY COVERAGE & EMPLOYEE DISHONESTY.

This policy contains a limit of liability $1,000,000 bodily injury and property damage combined covering the common property. We are not providing liability coverage for that portion of the premises which is reserved for an owners exclusive use and occupancy. It is obvious because of the exclusions in the master policy that you should consult with your own agent and purchase a policy to cover the following exposures:

(a) Value of household and personal property.
(b) Additional living expense.
(c) Personal Injury.
(d) Loss Assessment Coverage.
(e) Value of jewelry, furs, silverware, fine arts.

(f) Value of additions and alterations made or acquired at the expense of an individual unit owner.

Should a situation occur where you would like to present a claim under the master policy, please notify a member of the Board of Directors or their designee.

ARTICLE XX
Damage to or Destruction of Property

Section 1. Duty to Repair or Restore: Any portion of the Common Interest Community for which insurance is required under Article XIX hereof which is damaged or destroyed shall be repaired or replaced promptly by the Association unless (a) the Common Interest Community is terminated, in which case Section 38 of the Act applies, (b) repair or replacement would be illegal under any state or local statute or ordinance governing health or safety, or (c) subject to Article XVIII Section 4(b) of this Declaration eighty (80) percent of the Unit Owners, including every owner of a Unit or assigned Limited Common Element that will not be rebuilt, vote not to rebuild. The cost of repair or replacement of the Common Elements in excess of insurance proceeds and reserves is a Common Expense.

Section 2. Distribution of Insurance Proceeds: If the entire Common Interest Community is not repaired or replaced; (a) the insurance proceeds attributable to the damage Common Elements shall be used to restore the damaged area to a condition compatible with the remainder of the Common Interest Community, and (b) except to that other persons will be distributees, (i) the insurance proceeds attributable to Units and Limited Common Elements that are not rebuilt shall be distributed to the owners of those Units and the owners of the Units to which those Limited Common Elements were allocated, or to lien holders, as their interest may appear, and (ii) the remainder of the proceeds shall be distributed to all the Unit Owners or lien holders, as their interest may appear, in proportion to the Common Expense liabilities of all the Units.

Section 3. Estimate of Cost: Promptly after damage to or destruction of all or a portion of the Common Interest Community, and thereafter as it deems advisable, the Board of Directors shall obtain reliable and detailed estimates of the cost of repair or restoration.

Section 4. Collection of Construction Funds: Construction Funds may considt of insurance proceeds, condemnation awards, proceeds of assessments against Unit Owners, payments by Unit Owners for damage to or destruction fo Units, and other funds received on account of or arising out of injury or damage to the Property.

(a) **Insurance Proceeds.** The Board of Directors shall adjust losses under physical damage insurance policies of the Association. Such losses shall be payable to the Association for the benefit of the Unit Owners and their mortgagees, as their interest may appear, or to the Trustee, if any shall be appointed pursuant to Section 8 of this Article XX.

(b) **Condemnation Awards.** Subject to such prior rights thereto as may exist in favor of mortgagees of Units pursuant to the terms of their respective mortgages, condemnation awards shall be payable as follows: (1) if any part of any such condemnation award is in respect to Common Elements, it shall be payable, in its entirety, to the Board of Directors or to the Trustee, if any shall be appointed pursuant to Section 8 of this Article XX; and (ii) if any such condemnation award does not involve Common Elements, then it shall be payable to the Unit Owner or owners affected.

(c) **Assessments against Unit Owners.** If the insurance proceeds and condemnation awards are insufficient to effect the necessary repair or restoration of Common Elements, such deficiency shall be charged against all Unit owners as a Common Expense. The proceeds of assessments for such Common

Expenses shall be paid to the Board of Directors or to the Trustee, if any shall be appointed pursuant to Section 8 of this Article XX.

(d) **Payment by Unit Owners.** Payments received from Unit Owners pursuant to Section 6 of this Article XX, shall be paid to the Board of Directors or to the Trustee, if any shall be appointed pursuant to Section 8 of this Article XX.

(e) **Payment by Others.** Any other funds received on account of or arising out of injury or damage to the Property shall be paid to the Board of Directors or to the Trustee, if any shall be appointed pursuant to Section 8 of this Article XX.

Section 5. Plans and Specifications. Any repair or restoration must be either substantially in accordance with the architectural and engineering plans and specifications for the original buildings, and shall also include such improvements and fixtures as may have been installed by any particular Unit Owner and as to which payment for such repair or reconstruction is forthcoming, or according to plans and specifications approved by the Board of Directors and by a majority of the Unit Owners and the holders of the Eligible Mortgages encumbering fifty-one (51%) percent of the undivided interest in the Common Elements subject to the mortgages, and all Construction Lenders, and if the damage property contains any Units, by all of the owners of the Units therein, which approvals shall not be withheld unreasonbly.

Section 6. Units: Damage to or destruction of improvements situated within a Unit shall be repaired or restored (except after a determination not to repair or restore pursuant to Section 1 of this Article XX) as follows:

(a) **Construction Funds:**

(i) To the extent that such damage or destruction is covered by insurance of the Association or by a condemnation award not specifically allocated to the Unit Owner, the proceeds of such insurance or award shall be available for the repair or restoration of the Unit.

(ii) To the extent that such damage or destruction is covered by insurance of the Association or by a condemnation award not specifically allocated to the Unit Owner, such Unit Owner shall be responsible for the cost of repair and restoration.

(b) **Performance of work and Payment:**

(i) If there is no damage to or destruction of Common Elements, the repair or restoration of the Unit shall be promptly effected by the Unit Owner.

(ii) If there is damage to or destruction of Common Elements, the repair or restoration of the Unit shall be promptly effect by the Association, to the extent that Construction Funds as described in Subsection (a)(i) of this Section 6 are available and to the extent that the Unit Owner makes payment as hereafter provided. Each Unit Owner shall pay to the Board of Directors such sums as necessary, according to the estimate of cost described in Section 3 of this Article, to cover any part of the cost of repair or restoration which is not covered by insurance of the Association or by a condemnation award not specifically allocated to the Unit Owner.

Section 7. Disbursement of Construction Funds: The Board of Directors, or the Trustee, if any shall be appointed pursuant to Section 8 of this Article XX, shall disburse the Construction Funds in the following manner:

(a) **Payment for Repair or Restoration.** The Board of Directors shall apply such Construction Funds to pay directly, or the Trustee, if any, shall apply such Construction Funds to pay directly, or to reimburse the Association for the payment for, the costs or repair or restoration of the Property including the cost of temporary repairs for the protection of the Property pending the completion of permanent repairs and restoration, upon written certification of the Board of Directors to the Trustee, if any, in accordanc with Section 10(a) of this Article XX, and upon an architect's certificate stating that the work represented by such payment has been completed satisfactorily.

(b) **Contributions by Unit Owners.** The Association shall maintain a separate account as to each Unit with respect to payment by a Unit Owner pursuant to Section 6(b)(ii) of this Article XX, and expenditures of such payments. General expenses of administration, such as deductions by the Trustee for its costs, expenses and fees, shall be charged against the Association's Construction Funds and against the Unit Owner's payments pursuant to Section 6(b)(ii) of this ARticle in proportion to the amounts of each. All portions of such payments bya Unit Owner not expended as herein provided shall be refunded to the Unit Owner.

(c) **Surplus Funds.** If, after payment for all repairs and restoration, and the refunds of any excess payments by any Unit Owner pursuant to Subsection (b) of this Section, there remains any surplus fund, such fund shall be paid to Unit Owners in proportion to the Unit Owners contributions resulting from assessments levied against them pursuant ot Section 4(c) of this Article XX; provided, however, that no

Unit Owner shall receive a sum greater than that actually contributed by the Unit Owner. Any surplus remaining after such payments shall be paid to the Association and shall be part of its general income, except that to the extent such surplus be paid to the Unit Owners or the mortgagee as their interest may appear, in the proportion in which such awards were originally made.

(d) **Use of Insurance Proceeds for other Purposes.** The Association shall not use hazard insurance proceeds for losses to any portion of the Common Interest Community for any purposes other than the repair, replacement or reconstruction of the Common Interest Community unless at least sixty-seven (67%) percent of the Unit Owners have given their prior written approval or unless a determination not to repair or restore has been made pursuant to this Article XX.

Section 8. Trustee: The Board of Directors may, in its sole discretion, enter into and keep in force a trust agreement with a bank qualified to do business in the State of Connecticut and having trust powers, to receive, administer and disburse funds pursuant to Article XIX and XX hereof. Such trust agreement shall incorporate this Declaration and Bylaws by reference and shall provide that upon termination thereof all monies or funds held by the Trustee shall be turned over only to a successor Trustee, which shall also be a bank Trustee pursuant to this Article XX. No amendment to this Declaration or of the Bylaws affecting Article XIX or this Article XX shall be binding on the Trustee until the Trustee receives notice of such amendment. The Trustee shall be entitled to reasonable compensation for services performed.

Section 9. Determination not to Repair or Restore: If the Unit Owner, subject to Article XVIII Section 4(b) of this Declaration, vote not to rebuild any Unit, that Unit's Allocated Interests are automatically reallocated on the vote as if the Unit had been condemned under subsection (a) of Section 7 of the Act, and the Association promptly shall prepare, execute and record an amendment to this Declaration reflecting the reallocations.

Section 10. Certificates by The Board of Directors: A Trustee, if one is appointed under the provisions of Section 8 of this Article XX, may rely on the following certifications in writing made by the Board of Directors:

(a) Whether or not damaged or destroyed Property is to be repaired or restored;

(b) the amount or amounts to be paid for repairs or restoration and the names and addresses of the parties to whom such amount are to be paid.

Section 11. Certificates by Attorneys: If payments are to be made to Unit Owners or mortgageees, the Board of Directors, and the Trustee, if any, shall obtain and may rely on an attorney's certificate of title or a title insurance policy based on a search of the land records of the Town of New Haven from the date of the recording of the original Declaration stating the names of the Unit Owners and the mortgagees.

Section 12. Arbitration: Any dispute concerning any provision of this Article XX or the existence of any fact or facts shall be submitted to arbitration in accordance with the rules of the American Arbitration Association then in effect.

ARTICLE XXI
Assessment and Collection of Common Expenses

Section 1. Apportionment of Common Expense: Except as provided in Section 2 of this Article XXI, all Common Expenses shall be assessed against all Units in accordance with their percentage interest in the Common Expenses as shown on Exhibit D-B, attached hereto and made a part hereof.

Section 2. Common Expenses Attributable to fewer than all Units:

(a) Any expense for services provided by the Association to an individual Unit at the request of the Unit Owner shall be assessed against the Unit which benefits from such service.

(b) If any damage is caused to the Common Elements by the misconduct of any Unit Owner, the Association may assess that expense exclusively against the Unit Owner.

(c) Fees, charges, late charges, fines and interest charged against a Unit Owner pursuant to the Instruments and the Act are enforceable as assessments.

Section 3. Liens:

(a) The Association has a statutory lien on a Unit for any assessment levied against that Unit or fines imposed against its Unit Owner from the time the assessment or fine becomes delinquent. Fees, charges, late charges, fines and interest charged pursuant to the Act are enforceable as assessments under this Section. If an assessment is payable in installments, the full amount of the assessment is a lien, from the time the first installment thereof becomes due.

(b) A lien under this Section is prior to all other liens and encumbrances on a Unit except (i) liens and encumbrances recorded before the recordation of this Declaration (ii) a first or second Security Interest on the Unit recorded

before the date on which the assessment sought to be enforced became delinquent, and (iii) liens for real property taxes and other governmental assessments or charges against the Unit. The lien is also prior to all Security Interests described in Subdivision (ii) of this Subsection to the extent of the Common Expense assessments based on the periodic budget adopted by the Association pursuant to Section 4 of this Article XXI which would have become due in the absence of acceleration during the six (6) months immediately preceeding institution of an action to enforce either the Association's lien or a security interest described in Subdivision (ii) of this Subsection. This subsection does not affect the priority of mechanics' or materialmen's liens, or the priority of liens for other assessments made by the Association.

(c) Recording of this Declaration constitutes record notice and perfection of the ien. No further recordation of any claim of lien for assessment under this section is required.

(d) A lien for unpaid assessments is extinguished unless proceedings to enforce the lien are instituted within two (2) years after the full amount of the assessments become due; provided, that if an owner of a Unit subject to a lien under this Section files a petition for relief under the United States Bankruptcy Code, the period of time for instituting the proceedings shall be tolled until thrity (30) days after the automatic stay of proceedings under Section 362 of the Bankruptcy Code is lifted.

(e) This section does not prohibit actions to recover sums for which Subsec (a) of this Section creates a lien or prohibits the Association from taking a deed in lieu of foreclosure.

(f) A judgment or decree in any action brought under this section shall include costs and reasonable attorney's fees for the prevailing party.

(g) The Association on written request shall furnish to a Unit Owner a stastement in recordable form setting forth the amount of unpaid assessments against the Unit. The statement shall be furnished within ten (10) business days after receipt of the request and is binding on the Association, the Board of Directors and every Unit Owner.

(h) The Association's lien may be foreclosed in like manner as a mortgage on real property.

(i) No Unit Owner may exempt himself from liability for payment of the Common Expenses by waiver of the use or enjoyment of any of the Common Elements or by abandonment of the Unit against which the assessments are made.

Section 4. Budget Adoption and Ratification: Within thrity (30) days after adoption of any proposed budget for the Common Interest Community, the Board of Directors shall provide a summary of the budget to all the Unit Owners, and shall set a date for a meeting of the Unit Owners to consider ratification of the budget not less than fourteen (14) nor more than thirty (3) days after mailing of the summary. Unless at that meeting a Majority of Unit Owners reject the budget, the budget is ratified, whether or not a quorum is present. In the event the proposed budget is rejected, the periodic budget last ratified by the Unit Owners shallbe continued until such time as the Unit Owners ratify a subsequent budget proposed by the Board of Directors.

Section 5. Ratification of Special Assessments: If the Board of Directors votes to levy a special assessment in an amount greater than fifteen (15%) percent of the current annual operating budget, the Board of Directors shall submit the special assessment to the Unit Owners for ratification in the same manner as a budget under Section 4 of this Article XXI.

Section 6. Certificate of Payment of Common Expense Assessments: The Association on written request shall furnish to a Unit Owner a statement in recordable form setting forth the amount of unpaid assessments against the Unit. The statement shall be furnished within ten (10) business days after receipt of the request and is binding on the Association, the Board of Directors and every Unit Owner.

Section 7. Monthly Payment of Common Expenses: All Common Expenses assessed under Sections 1 and 2 of this Article XXI shall be due and payable monthly.

ARTICLE XXII
Right to Assign Future Income

Under an affirmative majority vote of the Unit Owners in attendance at a meeting at which a quorum is present, the Association may assign its future income, including its right to receive Common Expense Assessments.

ARTICLE XXIII
Delegation of Powers and Obligations to Association

All of the rights, powers and obligations of the Association or its Board of Directors set forth in the Act, this Declaration and the Bylaws are hereby delegated to the Association. The power and duty of the Association to adopt and amend budgets for revenues, expenditures and reserves and collect assessments for Common Expense from Unit Owners is also hererby expressly delegated to the Association.

ARTICLE XXIV
Membership, Voting Rights and Shares in the Association

Section 1. Membership: There shall be one class of membership in the Association. Each Owner of a Unit at Cherry Hill Court Condominium is a member of the Association.

Section 2. Voting Rights: The members of the Association shall have voting rights, identical to their respective power to elect a Board of Directors in accordance with the Bylaws of the Association.

ARTICLE XXV
Rights to Notice and Comment; Notice and Hearing

Section 1. Rights to Notice and Comment: Before the Board of Directors amends the Bylaws or the Rules and Regulations, and at any other time the Board of Directors determines, the Unit Owners have the right to receive notice of the proposed action and the right comment orally or in writing. Notice of the proposed action shall be given to each Unit Owner in writing and shall be delivered personally or by mail to all Unit Owners at such address as appears in the records of the Association, or published in a newsletter or similar publication which is routinely circulated to all Unit Owners. The notice shall be given not less than five (5) days before the proposed action is to be taken. The right to Notice and Comment does not entitle a Unit Owner to be heard at a formally constituted meeting.

Section 2. Right to Notice and Hearing: Whenever the Instruments require that an action be taken after "Notice and Hearing", the following procedure shall be observed: The party proposing to take the action (e.g. the Board of Direcotrs, a committee, an officer, the manager, etc.) shall give written notice of the proposed action to all Unit Owners or occupants of Units whose interest would be significantly affected by the proposed action. The notice shall include a general statement of the proposed action and the date, time and place of the hear9ing. At the hearing, the affected person shall have the right, personally or by a representative, to give testimony orally, in writing or both (as specified in the notice), subject to reasonable rules of procedure established by the party conducting the meeting to assure a prompt and orderly resolution of the issues. Such shall not bind the decision makers. The affected person shall be notified of the decision in the same manner in which notice of the meeting was given.

Section 3. Appeals: Any person having a right Notice and Hearing shall have the right to appeal in writing to the Board of

Directors from a decision of persons other than the Board of Directors within ten (10) days after being notified of the decision. The Board of Directors shall conduct a hearing within thirty (30) days after receipt of the written appeal, giving the same notice and observing the same procedures as were requied for the original meeting.

ARTICLE XXVI
Open Meetings

Section 1. Access: All meetings of the Board of Directors, at which action is to be taken by vote at such meeting shall be open to the Unit Owners, except as hereafter provided.

Section 2. Notice: Notice of every such meeting shall be given not less than twenty-four (24) hours prior to the time set for such meeting except as provided in Article XXV, by posting such notice in a conspicuous location in the office of the Association, except that such notice will not be required if an emergency situation requires that the meeting be held without delay.

Section 3. Executive Sessions: Meeting of the Board of Directors may be held in executive sessions, without giving notice and without requirement that they be open to Unit Owners, in either of the following situations only:

(a) No action is taken at the executive session requiring the affirmative vote of Directors; or

(b) The action taken at the executive session involves personnel, pending litigation, or enforcement actions.

ARTICLE XXVII
Maintenance of the Common Interest Community

Section 1. Provision of Services: In addition to maintenance upon the Common Elements, the Association shall provide maintenance and management services to the Common Interest Community.

Section 2. Services Performed for the Common Interest Community: In addition to maintenance upon the Common Elements, the Association shall provide exterior maintenance to the Common Interest Community which is subject to assessment in accordance with standards established by the Board of Directors and set forth in the Maintenance Policy, as may be amended from time to time. The Association shall not repair and maintain the area, structures and improvements within Units as defined in this Declaration. The Board may exclude upon application of a Unit Owner, by resolution, its obligations to maintain certain improvements, provided that the applicant agrees to maintain the improvements at tis own expense.

ARTICLE XXVIII
Use, Purpose and Restrictions

Subject to the Special Declarant Rights reserved under Article VII hereof, and the Developer's Reservations and obligations reserved under Article VIII hereof, the use of the Common Interest Community shall be restricted to, and shall be in accordance with, the following provisions:

Section 1. Use of Units: No Unit Owner or Condominium Association shall permit the use of the Units for other than residential purposes except as provided herein. No Unit may be divided or subdivided into a smaller Unit.

Section 2. Residential Use: Each Unit is hereby restricted to residential use by the Unit Owner thereof, his lessees, his immediate family, guests and invitees. Each Unit shall be occupied for no other purpose except for home professional pursuits without employees or regular visits by the public.

Section 3. Parking Spaces: There are two (2) parking spaces per unit for use of parking motor vehicles by the Owner or occupant of the unit in which said parking spaces are allocated. Parking spaces may be leased only to other unit owners or occupants of Cherry Hill Court Condominium.

Section 4. Subject to Regulations: The use of the Common Elements by all the Unit Owners and all other persons authorized to use the same shall be at all times subject to the Bylaws and such Regulations as may be prescribed and established governing such use, or which may be hereafter prescribed and established by the Board of Directors.

Section 5. Leases of Units:

(a) A Unit may not be leased for a term of less than sixty (60) days. Any lease of a Unit shall be in writing, and shall be consistent with this Declaration, the Bylaws and the Rules and Regulations and shall provide that they may not be modified, amended, extended or assigned without the prior written consent of the Board of Directors; that the tenant shall not sublet the demised premises, or any part thereof, without the prior written consent of the Board of Directors; and that the Association shall have the power to terminate such lease, and bring summary proceedings to evict the tenant in the name of the landlord thereunder, in the event of default by the tenant in the performance of said lease, or failure by the tenant to perform an obligation in this Declaration, the Bylaws or Rules and Regulations.

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(b) A Unit may not be conveyed pursuant to a time sharing plans as defined under Chapter 734(b) of the Connecticut General Statutes.

Section 6. Abatement and Enjoinment of Violations by Unit Owners: The violation of any of the Rules and Regulations adopted by the Executive Board or the breach of any provision of the Instruments, shall give the Executive Board the right, subject to Notice and Hearing, except in case of an emergency, in addition any other rights set forth in the Bylaws:

(a) to enter the Unit in which, or as to which, such violation or breach exists and to summarily abate and remove, at the expense of the defaulting Unit Owner, any structure, thing or condition, except for additions or alterations of a permanent nature that may exist therein, contrary to the intent and meaning of the provisions of this Declaration, and the Executive Board shall not thereby be deemed liable for any manner of trespass; or

(b) to enjoin, abate or remedy by appropriate legal proceedings, either at law or in equity, the continuance of any such breach.

Section 7. Fine for Violation: By resolution, following Notice and Hearing, the Executive Board may levy a fine of up to twenty-five ($25.00) dollars per day for each day that a violation

of the Instruments or Rules and Regulations persists after such Notice and Hearing.

ARTICLE XXIX
Persons Subject to Declaration
Bylaws and Regulations

All future Unit Owners, tenants, mortgagees, and occupants shall be subject to and shall comply with the provisions of this Declaration, any amendments thereto, the Bylaws and the Rules and Regulations. The initial Bylaws shall be recorded on the New Haven Land Records with this Declaration. Tenants and occupants shall be deemed to have covenanted to comply with the obligations of Unit Owners under this Declaration, whether in writing or not.

ARTICLE XXX
Captions and Introduction

The captions and introductory material herein are inserted only as a matter of convenience and for reference and in no way define, limit, or describe the scope of this Declaration or any amendment thereto nor the intent of any provision hereof.

ARTICLE XXXI
Gender

The use of the masculine gender in this Declaration or any amendment thereto shall be deemed to refer to the feminine and neuter gender and the use of the singular shall be deemed to refer to the plural, and vice versa, whenever the context so requires.

ARTICLE XXXII
Waiver

No provisions contained in this Declaration or any amendment thereto shall be deemed to have been abrogated or waived by reason of any failure to enforce the same, irrespective of the number of violations or breaches which may occur.

ARTICLE XXXIII
Invalidity

The invalidity of any provisions of this Declaration or any amendment thereto shall not be deemed to impair or affect in any manner the validity, enforceability or effect of the remainder of this Declaration or any amendment thereto and, in such event, all of the other provisions of this Declaration or any amendment thereto shall continue in full force and effect as if such invalid provision had never been included herein.

ARTICLE XXXIV
Voting

Whenever Unit Owners are to vote on any matter affecting this Declaration or any amendment thereto, such voting shall be conducted by them as members of the Association and in accordance with the provisions established in this Declaration or any amendment thereto and Bylaws.

ARTICLE XXXV
Notices

Any notice required to be sent to any Member, Mortgagee or Unit Owner under the provisions of this Declaration or any amendment thereto shall be deemed to have been properly sent when mailed, postage paid, to the last known address of the person who appears as Member, Mortgagee, or Unit Owner on the records of the Association at the time of such mailing.

ARTICLE XXXVI
Enforcement

Enforcement of the covenants and restrictions contained in this Declaration shall be by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants and restrictions; and failure by the Association or any Unit Owner to enforce any covenant or restriction contained in this Declaration shall be in no event deemed a waiver of the right to do so thereafter.

ARTICLE XXXVII
Severability, Interpretation

Invalidation of any one of the covenants or restrictions contained in this Declaration by judgment of court order shall in no way affect any other provision in this Declaration whi shall remain in full force and effect. The effect of a general statement shall not be limited by the enumeration of specific matters similar to the general.

IN WITNESS WHEREOF, It, has caused these presents to be executed and its seal to be hereunto affixed at New Haven, Connecticut, this day of , 1990 .

Signed, sealed and delivered
in the present of: NUTMEG HOUSING DEVELOPMENT CORPORATION

_____ BY _____
David Harding
Executive Vice President

_____

STATE OF CONNECTICUT)
) ss: at New Haven, , 1990
COUNTY OF NEW HAVEN)

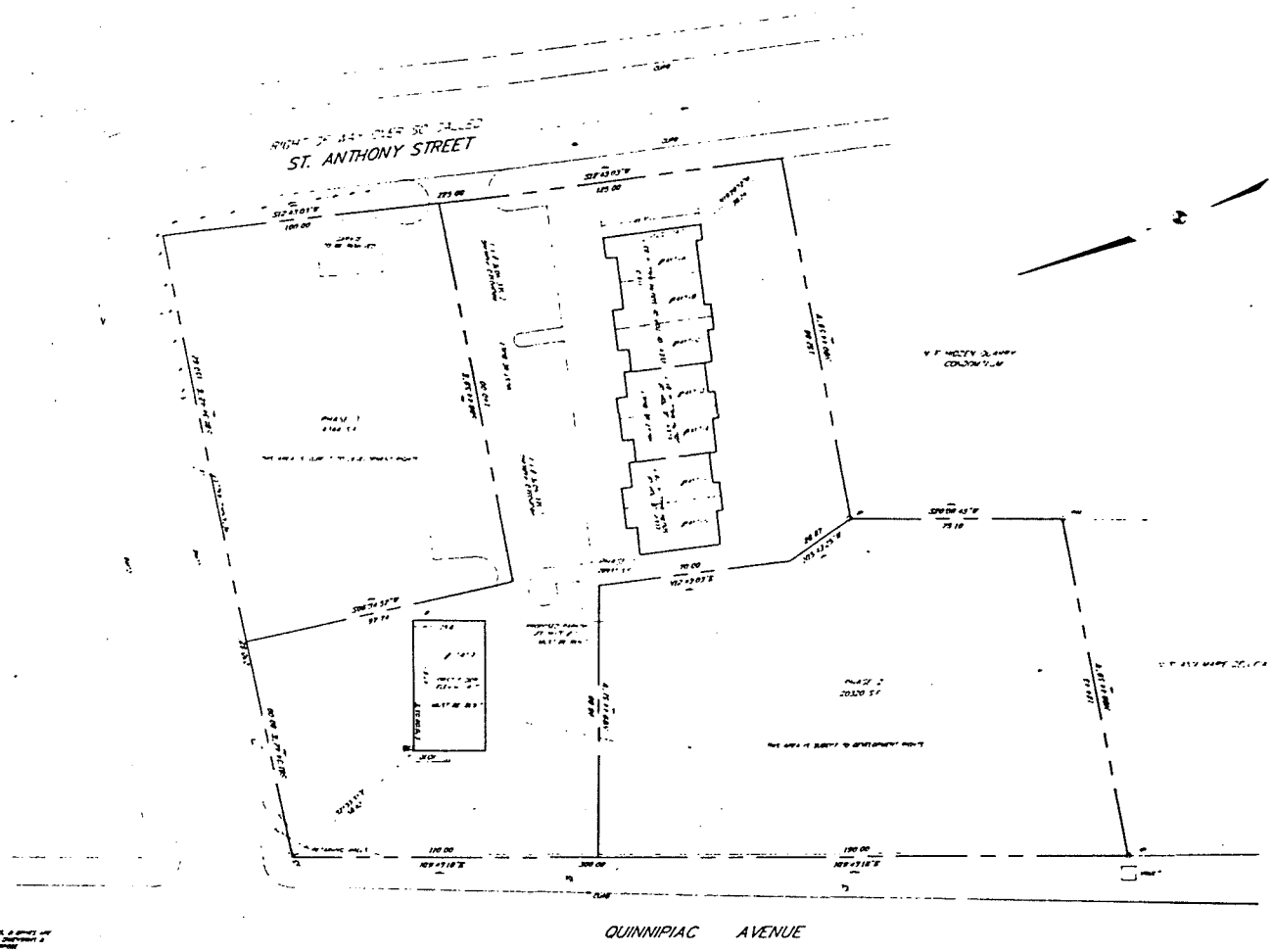
On this date, before me, **PASQUALE YOUNG** the undersigned officer, personally appeared **David Harding** who acknowledged himself to be the Executive Vice President of Nutmeg Housing Development Corporation, a corporation, and that he, as such Executive Vice President, being authorized so to do, executed the foregoing instrument for the purposes herein contained, by signing the name of said corporation by himself as its said President.

IN WITNESS WHEREOF, I hereunto set my hand.

_____
PASQUALE YOUNG
Commissioner of the Superior Court

EXHIBIT D-A

90-85



" CHERRY HILL COURT CONDOMINIUM "

SCALE 1"=20' DECEMBER 1, 1980

GODFREY-HOFFMAN ASSOCIATES
900 GRAND AVENUE
NEW HAVEN CONN. 06511

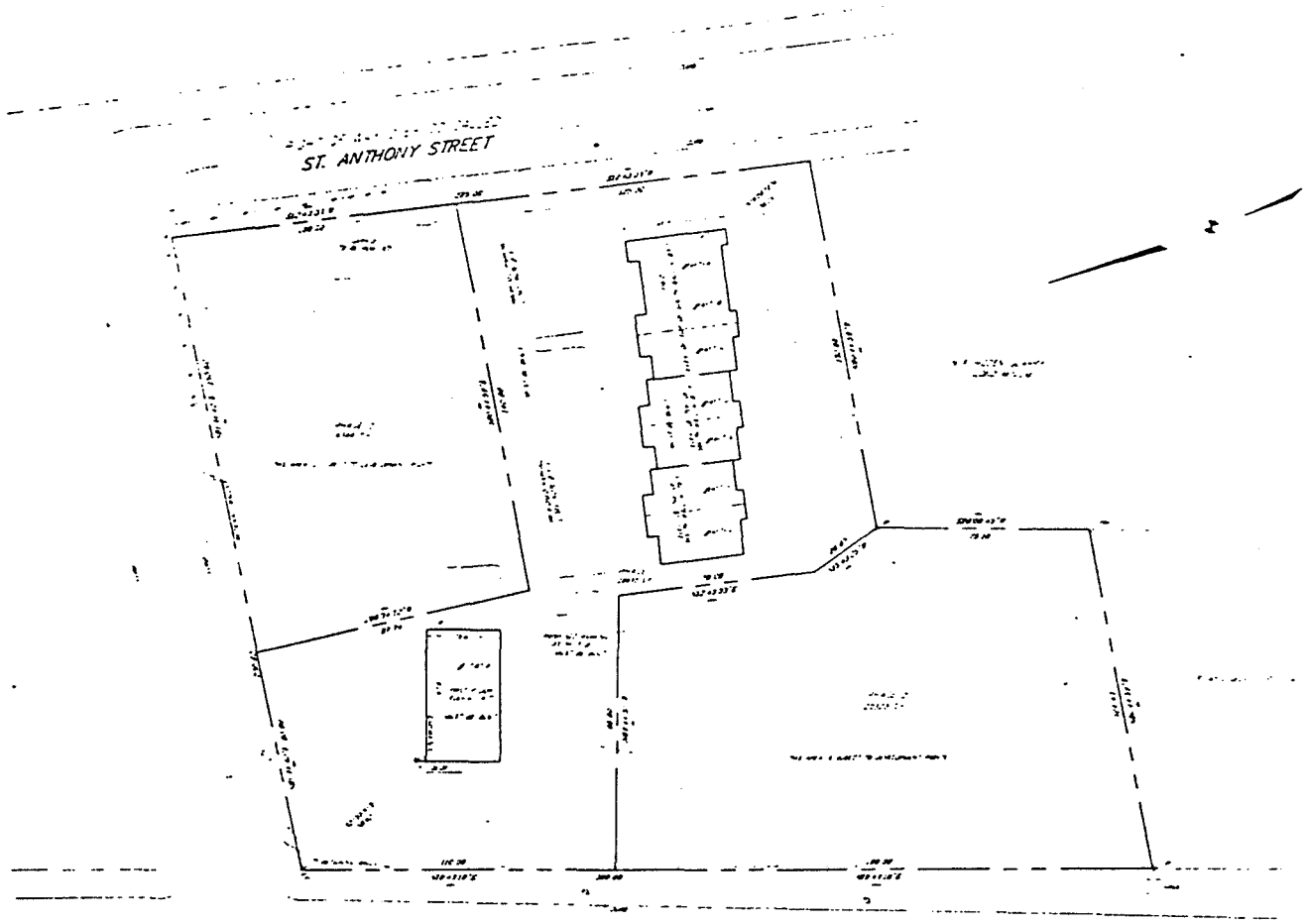
N-27

All that certain piece or parcel of land situated in the Town of New Haven, County of New Haven and State of Connecticut shown on a map entitled "Cherry Hill Court Condominium, New Haven, Connecticut" prepared by Godfrey-Hoffman Associates, , Scale 1"=20', dated June 15,1989 and bounded and described as follows:

Commencing at a point marked by a pin on the easterly side of Quinnipiac Avenue, which point is the southwesterly corner of the premises herein described, and running the following courses and distances: N 19 43' 18" E, 300.00 feet to a point; thence turning and running S 81 34' 42" E, 230.62 feet to a point; thence turning and running S 12 43' 03" W, 225.00 feet to a point; thence turning and running N 80 44' 59" W, 132,88 feet to a point marked by an iron pin; thence S 20 08 45" W, 75.10 feet to a point marked by an iron pin; thence turning and running N 80 44' 59" W, 124.43 feet to the point or place of beginning.

Together with rights of way appurtenant to the above described premises over St. Anthony St., so-called.

EXHIBIT D-B



" CHERRY HILL COURT CONDOMINIUM "

EXHIBIT B
TABLE OF INTEREST

Unit Indentifying Number	Phase	Undivided Percentage Interest In Common Elements	Undivided Percentage Interest In Common Expenses	Number of Votes In the Affairs of The Association
1417-A	1	12.5	12.5	1
1417-B	1	12.5	12.5	1
1417-C	1	12.5	12.5	1
1417-D	1	12.5	12.5	1
1417-E	1	12.5	12.5	1
1417-F	1	12.5	12.5	1
1417-G	1	12.5	12.5	1
1419	1	12.5	12.5	1

EXHIBIT D-C

EXHIBIT D-D-1 through D-D-5

EXHIBIT ~~A-3~~ B-D-1 PLANS

CHERRY HILL COURT (Condominium)

NUTMEG HOUSING DEVELOPMENT CORPORATION Declarant

To the best of my knowledge, I certify that this drawing contains all information required by Section 47-228(d) of the Common Interest Ownership Act relating to plans. The word "certify" is an expression of professional opinion which is based on my best knowledge, information and belief and as such, it contains neither a guarantee or warranty, express or implied.

Signature	CT License #	Date
MBiannelli	5989	25 JAN 90

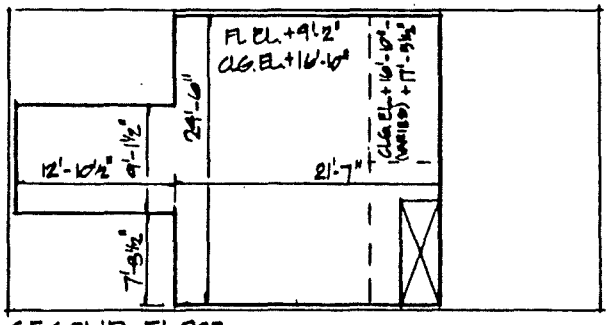
GENERAL NOTES

1. LEGEND

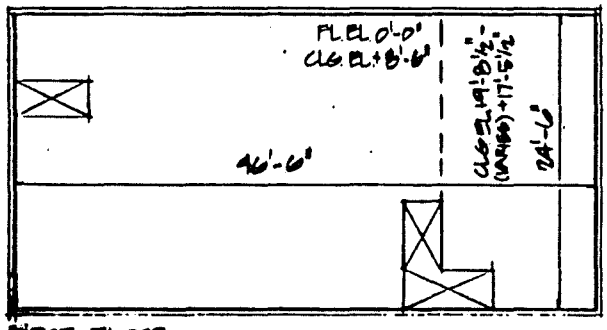
	Unit Boundary	FL.	Floor
	Exterior Boundary	EL.	Elevation
	Stair Areas	CLG.	Ceiling

2. Each unit includes Limited Common Element (LCE) steps and Limited Common Element (LCE) front porch and at 1421 Quinnipiac Avenue, Limited Common Element (LCE) rear deck (as shown on Declaration Exhibit A-3, Survey). The LCE rear deck and LCE front porch each adjoin the unit's first floor.

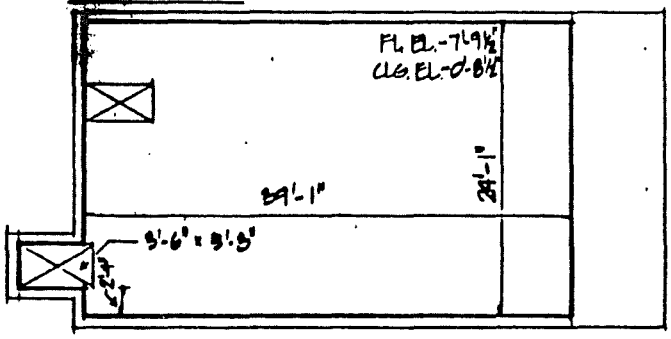
STATE OF CONNECTICUT
STEPHEN W. GIANNELLI
No. 5989
LICENSED ARCHITECT



SECOND FLOOR



FIRST FLOOR



BASEMENT

GRAPHIC SCALE

UNIT ADDRESS: 1419 Quinnipiac Avenue

D-D-2

EXHIBIT ~~A~~ PLANS

CHERRY HILL COURT (Condominium)

NUTMEG HOUSING DEVELOPMENT CORPORATION Declarant

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M Giannelli	5989	25 JAN 90
Signature	CT License #	Date

GENERAL NOTES

1. LEGEND

———	Unit Boundary	FL.	Floor
———	Exterior Boundary	EL.	Elevation
☒	Stair Areas	CLG.	Ceiling

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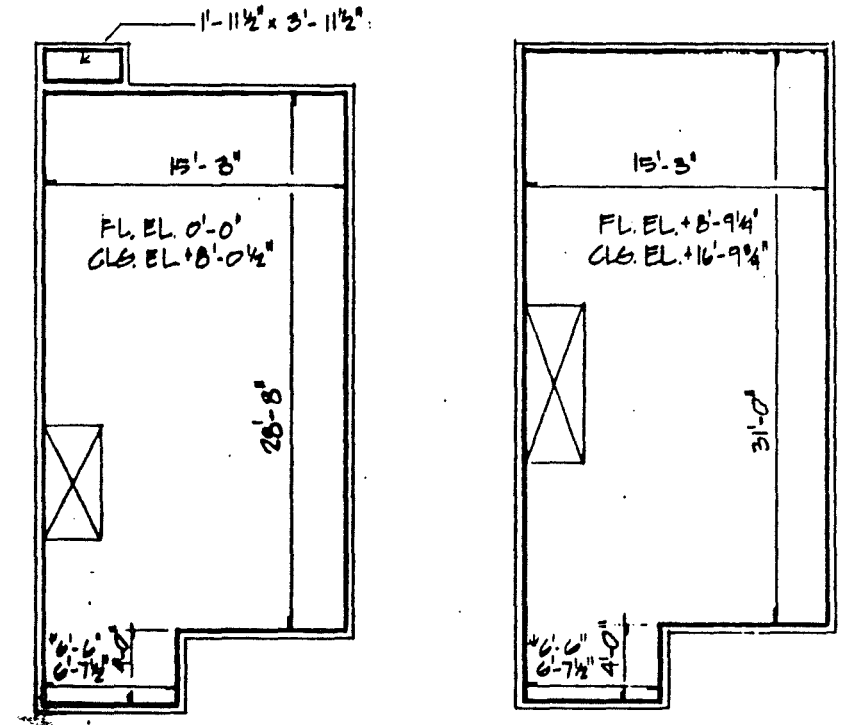

FIRST FLOOR

SECOND FLOOR

UNIT ADDRESS: 1417 Quinnipiac Avenue, Unit C
1417 Quinnipiac Avenue, Unit E
1415 Quinnipiac Avenue, Unit A*
1421 Quinnipiac Avenue, Unit B
1421 Quinnipiac Avenue, Unit D
1421 Quinnipiac Avenue, Unit F

0 1 2 3 4 5 6 7 8 9 10
GRAPHIC SCALE

STATE OF CONNECTICUT
STEPHEN W. GIANNELLI
No. 5989
LICENSED ARCHITECT

D-D-3

EXHIBIT A-3 PLANS

CHERRY HILL COURT (Condominium)

NUTMEG HOUSING DEVELOPMENT CORPORATION Declarant

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Signature	CT License #	Date
M Giannelli	5989	25 JAN 90

GENERAL NOTES

1. LEGEND

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———	Exterior Boundary	EL.	Elevation
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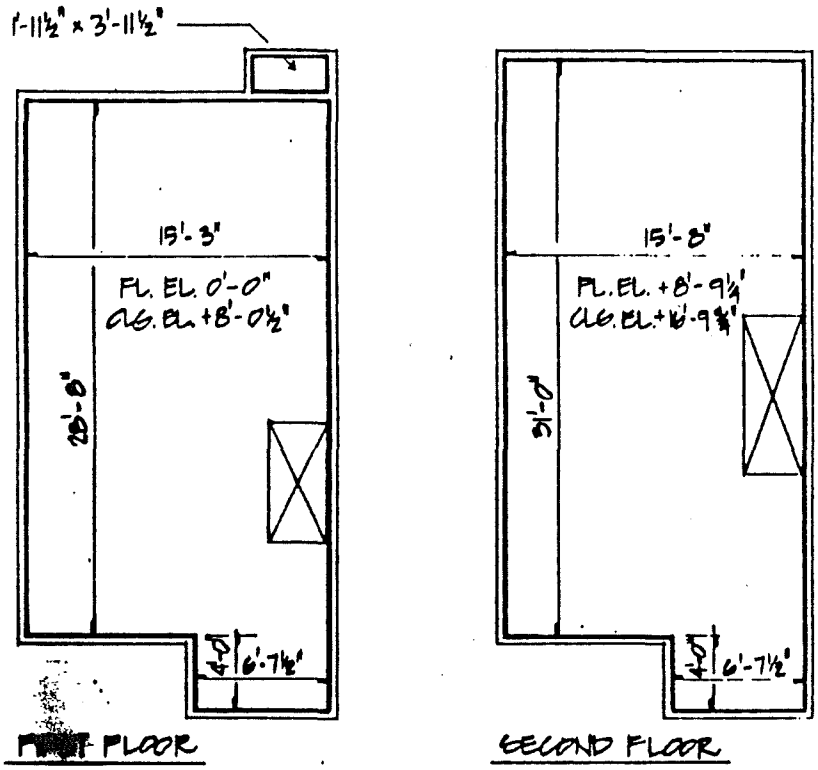

UNIT ADDRESS: 1417 Quinnipiac Avenue, Unit B
1417 Quinnipiac Avenue, Unit D
1417 Quinnipiac Avenue, Unit F
1415 Quinnipiac Avenue, Unit B
1421 Quinnipiac Avenue, Unit C
1421 Quinnipiac Avenue, Unit E

0 1 2 3 4 5 6 7 8 9 10
GRAPHIC SCALE

STATE OF CONNECTICUT
STEPHEN W. GIANNELLI
No. [illegible]
LICENSED ARCHITECT

D-D-4

EXHIBIT ~~XXX~~ PLANS

CHERRY HILL COURT (Condominium)

NUTMEG HOUSING DEVELOPMENT CORPORATION Declarant

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Signature	CT License #	Date
	5989	25 JAN 90

GENERAL NOTES

1. LEGEND

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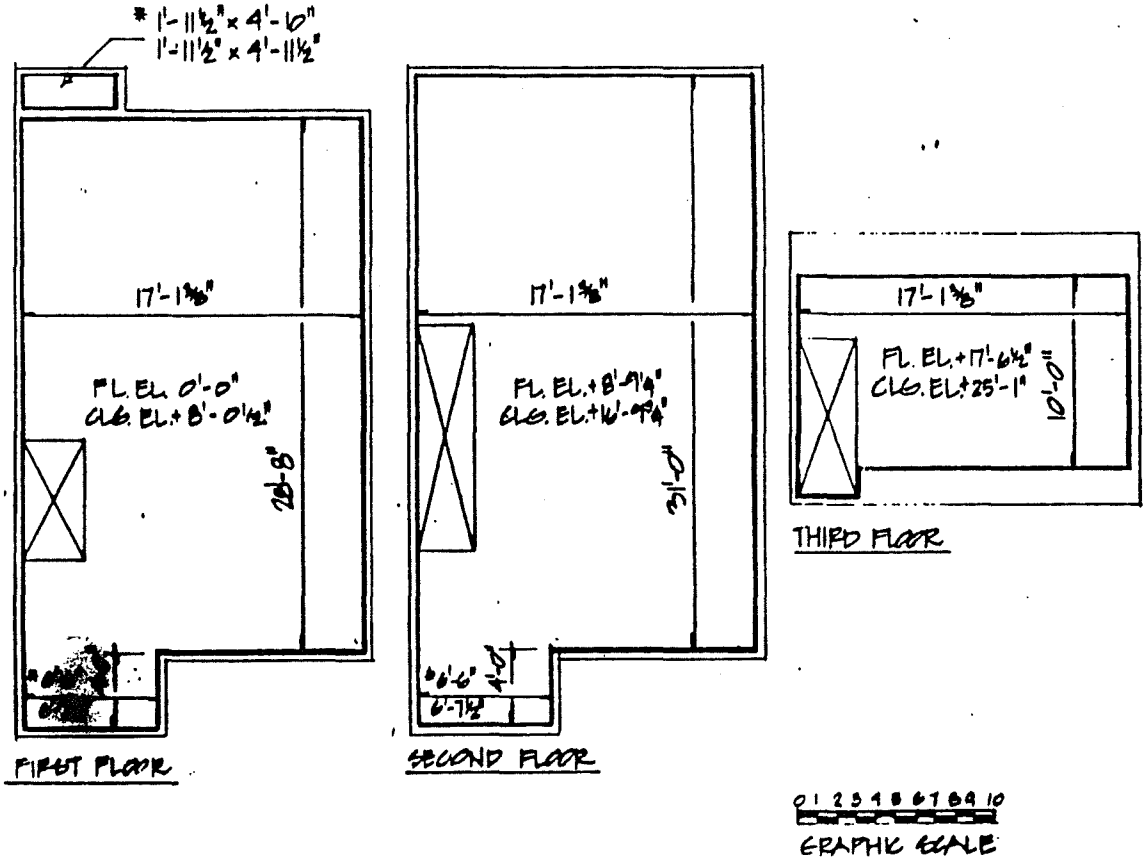
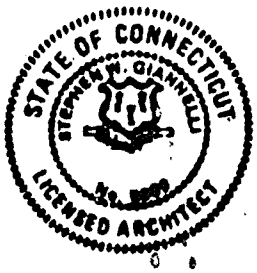


UNIT ADDRESS: 1417 Quinnipiac Avenue, Unit A*
1417 Quinnipiac Avenue, Unit G
1415 Quinnipiac Avenue, Unit C



D-D-5

EXHIBIT ~~XXX~~ PLANS

CHERRY HILL COURT (Condominium)

NUTMEG HOUSING DEVELOPMENT CORPORATION Declarant

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Signature	CT License #	Date
M Giannelli	5989	25 JAN 90

GENERAL NOTES

1. LEGEND

———	Unit Boundary	FL.	Floor
———	Exterior Boundary	EL.	Elevation
☒	Stair Areas	CLG.	Ceiling

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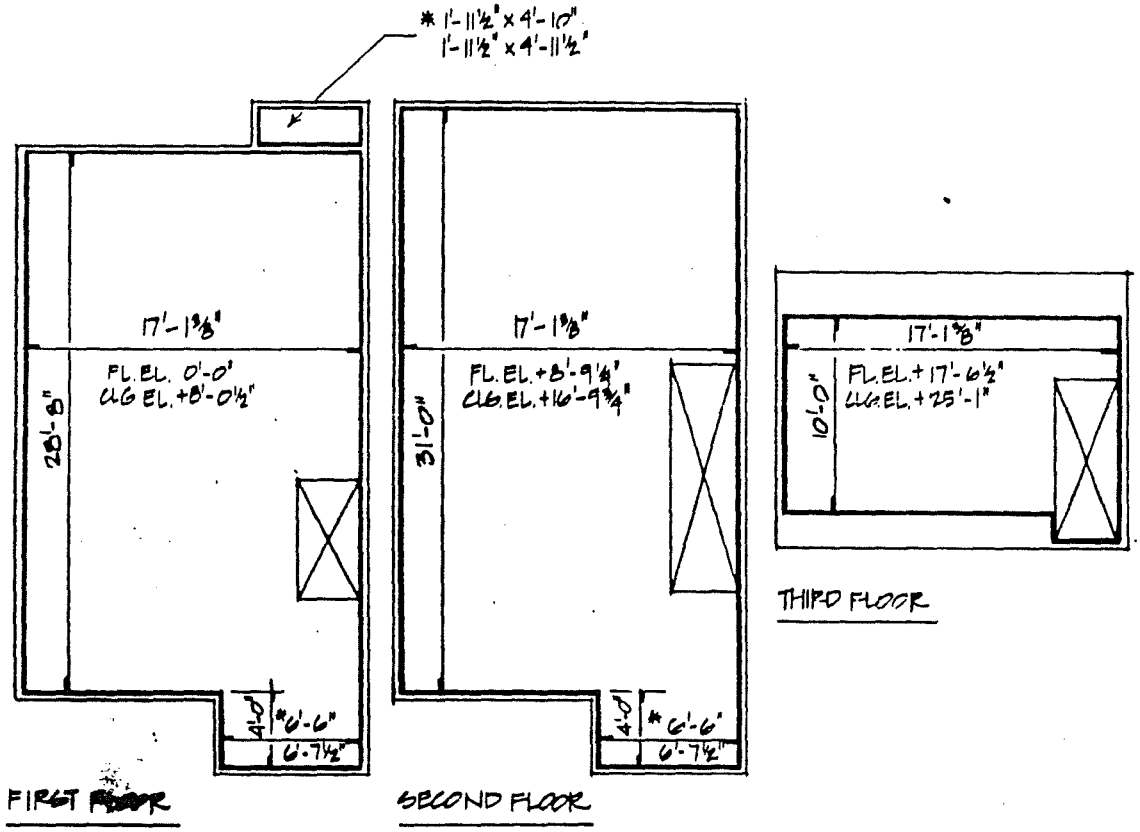

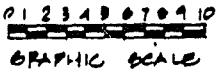

UNIT ADDRESS: 1421 Quinnipiac Avenue, Unit A*
1421 Quinnipiac Avenue, Unit G

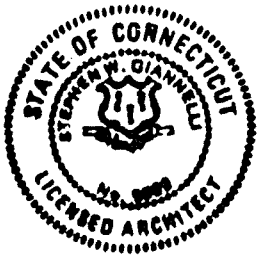

EXHIBIT D-E

EXHIBIT D-F

CHERRY HILL COURT CONDOMINIUM ASSOCIATION

ANNUAL BUDGET

MANAGEMENT FEES	3,024
LEGAL & ACCOUNTING	500
OFFICE SUPPLIES	475
ELECTRICITY	900
REPLACEMENT RESERVES	2,250
RUBBISH REMOVAL	2,160
INSURANCE	2,900
GROUNDS MAINTENANCE	2,700
BUILIDNG MAINTENANCE	1,500
MAINTENANCE SUPPLIES	360
MISCELLANEOUS	511
SUB-TOTAL	$17,280

$80 per unit per month

NEW UNITS ONLY (17 Units)

WATER AND SEWER USE	3,672
TOTAL BUDGET	$20,952

SUMMARY OF UNIT FEES:	No.	Monthly Fee	Annual Total
New Units	17	98	19,992
House	1	80	960
Total	18		20,952

NOTE Existing house has its own bill to pay for water and sewer use, although any maintenance of service connections are a common expense shared by all units.

This budget was prepared by David B. Harding